Date : 4/10/2026 3:23:57 PM
From : "Darin Woodard" Darin.Woodard@seiu1021.org
To : "Rodrigues, Janelle" JRodrigues@berkeleyca.gov
Cc : "Peter Masiak" peter.masiak@seiu1021.org, "Officers CSU PTRLA" csu-ptrla-officers@gaggle.email, "Ayers, Charles" CAyers@berkeleyca.gov
Subject : RFI related to pending layoffs

WARNING: This is not a City of Berkeley email. Do not click links or attachments unless you trust the sender and know the content is safe.

Good afternoon, Janelle.

It is the Union's understanding based on the Budget timeline put out by the City, today 4/10 is the day the City is:

- Department Heads Meet with Employees in Positions Proposed for Elimination in Budget Reduction Plan
- HR Notifies Union Leadership of Proposed Position Reductions and Seniority Lists
- HR Releases Notices to Impacted Classifications with Seniority Lists

As of yet the Union has not received any of that information.

Additionally, upon review of the layoff language in the MOU, the Union is making this initial RFI for information necessary to enforce the contract.

1. **Notice to the Union the stated reason for the layoff**. The MOU lists; "Material change in duties and organization, adverse working conditions, return of employee from leave of absence, or shortage of work or funds."
2. **The cost savings the City intends to receive through the layoff action**.
3. **List of all frozen vacancies**. The MOU states the City shall, "freeze all current City vacancies in the competitive service in similar and related classifications to those likely to be targeted for layoff, as well as all related full-time, benefited, temporary positions which are expected to last six (6) months or more."
4. **Seniority Service Dates**. The Union requests the Citywide SSD, along with the specific lists associated with the MOU, "Human Resources Department will immediately establish separate Probationary and Permanent Seniority Lists for each classification targeted for layoff."
5. **List of "natural progression" and "normal progression" classifications for all impacted classifications**. The MOU uses both terms to define the parameters for Retreat rights. While the Union may disagree with included classifications, we request the City provide us with the City's position on both progressions.
6. **Amount designated for Outplacement**. The MOU states, "City Manager may authorize the Human Resources Department to offer the affected employee the option of out placement. The out placement offer would provide a designated amount of funds to be paid to the employee for use by the employee for career development" and puts the range of outplacement payment at $1k-30k.
7. **List of all emergency, temporary, intermittent, seasonal, provisional, etc employees**.

8. **Copies of notices sent to all employees listed in #7**. The MOU states, “56.5.1 Emergency, temporary, intermittent, seasonal, etc., employees shall be notified individually, in writing, of pending layoff as soon as possible. However, at least two (2) weeks notification is desirable if possible. 56.5.2 Provisional employees shall be notified individually, in writing, of pending layoff as soon as possible, with no less than fifteen (15) calendar days notification if targeted for release or reassignment.”
9. **Copies of notices sent to all permanent, probationary, and career-exempt employees.** The MOU states, “Permanent, probationary, and career-exempt employees shall be notified individually, in writing, of pending layoffs as soon as possible, with no less than thirty (30) calendar days notification if targeted for release or reassignment.”

As you know, the Berkeley CSU layoff language is quite expansive and the Union continues to comb through it to identify any other information we need at this point. In addition to any other RFIs we submit related the MOU language, the Union also plans to submit an RFI in order to carry out the obligation to meet and confer over the impacts of layoff, including seeking alternatives. We are working with our research team to finalize that list and imagine much of it will be released on the 14th.

Please let us know if you have any questions.

Darin Woodard
SEIU 1021